

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #02	CCRB Case #: 202207003	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/21/2022 5:15 PM	Location of Incident: East 65th Street and 3rd Avenue	18 Mo. SOL 3/21/2024	Precinct: 19
Date/Time CV Reported Mon, 10/17/2022 8:29 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/17/2022 8:29 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Tambe Robertsadams	24714	970145	TD 33

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Kim Li	00290	949207	019 PCT
2. SGT Jonathan Andrade	01106	952412	TD 32

Officer(s)	Allegation	Investigator Recommendation
A . PO Tambe Robertsadams	Abuse: Police Officer Tambe Robertsadams stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . PO Tambe Robertsadams	Abuse: Police Officer Tambe Robertsadams provided a false official statement against § 87(2)(b)	B . Unfounded

Case Summary

On October 17, 2022, § 87(2)(b) filed this complaint with the CCRB via the on-line website (BR 1).

On September 21, 2022, at approximately 5:15 PM, at East 65th Street and 3rd Avenue in Manhattan, § 87(2)(b) was driving his blue Toyota Camry (NY License Plate #§ 87(2)(b)) when he stopped at a green light due to ongoing traffic. While § 87(2)(b) was stopped, Police Officer Tambe Roberts-Adams of Transit District 33, who appeared to be directing traffic, walked left-to-right on the crosswalk at the intersection and raised her hand at § 87(2)(b)'s vehicle in a stop motion. Police Officer Roberts-Adams then continued walking and stopped next to the front right fender of § 87(2)(b)'s vehicle. As § 87(2)(b) began to notice the other cars around him moving, he began to move forward and heard a “knock” noise and proceeded to stop his vehicle. Police Officer Roberts-Adams knocked on § 87(2)(b)'s window and told him he ran over her foot. Police Officer Roberts-Adams then instructed § 87(2)(b) to pull over (**Allegation (A) Abuse of Authority: Vehicle Stop, exonerated**). While speaking to Police Officer Roberts-Adams, § 87(2)(b) did not notice her show any signs of being injured. After speaking to § 87(2)(b) Police Officer Roberts-Adams spoke over her police radio and stated that an officer was injured.

A few minutes later, multiple officers and EMS arrived at the scene and Police Officer Roberts-Adams was taken into an ambulance. § 87(2)(b) alleged that Police Officer Roberts-Adams' statement on the Police Accident Report filed for the incident (BR 2) that § 87(2)(b) ran over her foot with his vehicle was false, as he did not believe he ran over her foot (**Allegation (B) Abuse of Authority: False Official Statement, unfounded**). § 87(2)(b) was not arrested or issued any summonses.

Body-Worn Camera footage (BWC) was obtained from the body-worn camera of Sergeant Kim Li of the 19th Precinct (BR 7, 8).

§ 87(2)(b) provided dashcam footage from his vehicle to this investigation (BR 3,4,8,9).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Tambe Roberts-Adams stopped the vehicle in which § 87(2)(b) was an occupant

§ 87(2)(b) was interviewed by the CCRB on November 7, 2022 (BR 5).

§ 87(2)(b) stated that after he allegedly ran over the foot of Police Officer Roberts-Adams, she instructed him to pull over his vehicle to the side of the road.

In dashcam footage provided by § 87(2)(b) (BR 4, 9), at 18 seconds into the video, Police Officer Roberts-Adams tells § 87(2)(b) “Get out of the car, you just ran over my foot.” At 33 seconds, Police Officer Roberts-Adams tells § 87(2)(b) “Pull over that way.” § 87(2)(b) then pulls his vehicle over.

New York Vehicle and Traffic Law § 600 (2)(a)(b) (BR 12) states that any person operating a motor vehicle that causes damage to real or personal property must stop and exhibit his or her license and insurance identification. It is the duty of officers at the scene of the accident to request the operator of the motor vehicle to exchange such information.

§ 87(2)(g)

Therefore, it is recommended that **allegation A** be **exonerated**.

Allegation (B) Abuse of Authority: Police Officer Tambe Roberts-Adams provided a false official statement against § 87(2)(b)

§ 87(2)(b) stated that Police Officer Roberts-Adams was located approximately one foot away from the front right fender of his vehicle between his lane and the lane to his right. When he noticed other cars moving forward, § 87(2)(b) decided to move forward as well and while doing so heard a knock sound near his vehicle. § 87(2)(b) then stopped his vehicle and heard Police Officer Roberts-Adams knocking on his window and telling him he ran over her foot. § 87(2)(b) did not believe that he had ran over her foot because he would have felt a “bump” if he had run over Police Officer Roberts-Adams’ foot. After being pulled over by Police Officer Roberts-Adams, § 87(2)(b) did not notice her showing any signs of injury. Once officers and EMS arrived at the scene, Police Officer Roberts-Adams was immediately taken away into an ambulance. § 87(2)(b) was unaware of any statements made by Police Officer Roberts-Adams. Upon receiving the accident report, § 87(2)(b) observed that it contained a statement attributed to Police Officer Roberts-Adams stating that he had run over her foot, which he believed was false.

In the Police Accident Report prepared for this incident by Sergeant Jonathan Andrade of Transit District 32 (**BR 2**), the account attributed to Police Officer Roberts-Adams states that she was directing traffic at the intersection of East 65th and 3rd Avenue when § 87(2)(b) disobeyed her instructions and ran over her right foot. The statement attributed to § 87(2)(b) states that he was attempting to cross the intersection of East 65th and 3rd Avenue when Police Officer Roberts-Adams placed her foot near his car, thus causing him to run over her foot.

In the first 60-second dashcam footage provided by § 87(2)(b) (**BR 3, 8**), Police Officer Roberts-Adams can be seen, at 46 seconds, crossing in front of § 87(2)(b)’s vehicle and making a stop gesture with her hand towards § 87(2)(b)’s vehicle.

In the second 60-second dashcam footage provided by § 87(2)(b) (**BR 4, 9**), which appears to continue directly from the end of the first clip, at 7 seconds, Police Officer Roberts-Adams can be seen in the lane to § 87(2)(b)’s right with her body facing east. As § 87(2)(b) drives forward past Police Officer Roberts-Adams, at 10 seconds there is a sharp sound accompanied by a recoil of § 87(2)(b)’s vehicle. At 13 seconds Police Officer Roberts-Adams knocks on § 87(2)(b)’s window, and at 19 seconds she tells him, “Get out of the car, you just ran over my foot.” At 21 seconds § 87(2)(b) tells Police Officer Roberts-Adams, “Why did you put the foot?” Police Officer Roberts-Adams responds, “I told you to wait, you’re not supposed to move.” § 87(2)(b) then tells Police Officer Roberts-Adams, “Yea but it was green light, you were over there.”

In BWC footage obtained from Police Officer Li (**BR 6,7**), at 2 minutes and 28 seconds, while providing his account of the incident and reenacting the incident to Police Officer Li, § 87(2)(b) tells Police Officer Li, “I started to move a little bit and she puts her feet like this under my wheel.” While demonstrating this, § 87(2)(b) faces his vehicle and puts his right foot in front of the front right tire of his vehicle.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation B** be **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 13**).
- Police Officer Roberts-Adams has been a member of service for two years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim search request was submitted to the NYC Comptroller's Office on December 22, 2022, and the results will be added to this report upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator:	<u>Zim Sessoms</u>	<u>Inv. Zim Sessoms</u>	<u>01/04/23</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>1/5/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date